

Chelsea Teachers' Union

Local 1340, AFT/MA, AFT, AFL-CIO

Constitution & By-Laws

MISSION AND VISION

The mission of the Chelsea Teachers Union is to organize on behalf of excellent and equitable working, learning, and living conditions for our members, our students, and our community.

The vision of the Chelsea Teachers Union is a diverse and unified school district, where our members organize alongside our community partners to build the union, schools, and community that Chelsea students deserve.

ARTICLE I ORGANIZATION

This organization shall be known as the Chelsea Teachers' Union, Local 1340.

ARTICLE II OBJECTIVES

The purpose of this organization shall be:

Section 1 To bring all members into relations of mutual assistance and cooperation;

Section 2 To obtain for all members the rights to which they are entitled;

Section 3 To raise the standards of education by securing the conditions essential to the best of professional service.

ARTICLE III MEMBERSHIP

Section 1 All classroom teachers, occupational therapists, specialists, school counselors, psychologists, social workers, speech pathologists, academic coaches, paraprofessionals, clerical workers, and permanent substitutes are members.

Section 2 No discrimination shall be shown toward individual members or applicants for membership because of age, color, race, religious faith, national origin, sex, sexual preference, marital status, or political activities or beliefs.

Section 3 A member may be expelled for acts detrimental to the Union upon presentation of written charges signed by at least one-fourth of the total membership and approved by at least three-fourths of the Executive Board. The member shall have the right to appeal the decision to the membership at the following membership meeting and shall be reinstated with full rights by one-half of the members present and voting by secret ballot.

Section 4 Any member whose dues are not paid in full as of June 30 each year shall be dropped from the rolls and their names shall be removed from the records at the state and national offices. The member may be reinstated upon the payment of delinquent dues.

ARTICLE IV OFFICERS

Section 1 The following officers shall be elected to a two year term by the Union:

President

Vice-President

Paraprofessional Vice-Presidents (3)

Clerical Vice-President

Treasurer

Secretary

Section 2 Membership in good standing for a minimum of three years is required to hold office.

Section 3 Officers shall be elected by secret ballot prior to the start of the regular May membership meeting (in odd years). A majority of votes cast shall be necessary for election.

Section 4 All vacancies must be filled by special election by the membership in compliance with Article VIII on elections. If the office of President becomes vacant, the Vice President becomes President.

Section 5 Officers shall receive the following (net) stipends per year as follows:

President (\$15,000)

Vice President (\$7,520)

Paraprofessional Vice-Presidents (\$1,000)

Clerical Vice-President (\$1,000)

Treasurer (\$7,520)

Secretary (\$7,520)

President, Vice President, Treasurer, & Secretary will be paid over ten months from August through May. Paraprofessional and Clerical Vice President will be paid half in November and half in May.

ARTICLE V COMMITTEES

Section 1 The President has the power to establish any necessary committees and to appoint

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and remove any members there from.

Section 2 Chairpersons of each of the committees shall be appointed either by the President or by committee members.

Section 3 Stipends for negotiating teams shall be allotted as follows:

A. Each negotiating team member will receive \$500 for the first three months of negotiations.

B. For each additional three months, each member will receive \$250.

C. Additional negotiations required during the contract year will be paid \$250 per special negotiation.

Section 4 Stipends for Committee Chairpersons and Appointed Positions shall be approved by the Officers and published in the CTU policies.

ARTICLE VI EXECUTIVE BOARD

Section 1 The Executive Board of the Chelsea Teachers' Union, Local 1340, shall consist of the following:

A. All elected Officers (IV, 5)

B. Elected Building Representatives (VI, 7)

Section 2 The Executive Board shall administer the policy of the Union as set by the membership at regular meetings. It shall have the power to act for the good of the Union in emergency situations where the policy cannot be set by the membership.

Section 3 The chairperson of the Executive Board shall be the President of the Union.

Section 4 The time and place of Executive Board meetings shall be set by the President prior to the beginning of the school year.

Section 5 The Executive Board shall report its activities at each regular membership meeting.

Section 6 A majority of the membership present at a regular meeting can override any action of the Executive Board if a quorum is present.

Section 7 The Building Representatives shall be elected prior to the May membership meeting (the same calendar year as the May Officer elections) in accordance with Section 4 of Article VIII. Newly elected officers and Building Representatives will be installed on the first of July following the election but will be invited to the June meeting.

A. Each school will have 1 representative for every 45 members in the building.

B. Building Representatives as well as Union officers (Article IV) shall serve a two year term as Executive Board members and shall receive a \$1000 stipend for attending all

Executive Board meetings. Stipend will be prorated on the number of Executive Board meetings attended in full.

At any regular or special meeting of the Executive Board, a Building Representative may be removed with or without cause by a two-thirds majority vote of the Executive Board. If a motion is made and seconded to remove a Building Representative, the member shall be given the opportunity to be heard at the meeting and/or resign prior to the vote.

At any General Union meeting of the membership, an Elected Officer may be removed with or without cause by a two-thirds majority vote of the General Membership conducted via ElectionRunner or similar software. An agenda with the removal of an Elected Officer to be noted must be sent to the membership at least 10 days prior to the scheduled meeting via email to the email address on file with the Union. If a motion is made and seconded to remove an Elected Officer, the member shall be given the opportunity to be heard at the meeting and/or resign prior to the vote.

Section 8 There shall be ten Executive Board meetings.

ARTICLE VII AFFILIATIONS

Section 1 The Union shall maintain affiliation with and whenever possible send delegates to the following organizations:

A. The American Federation of Teachers. The President shall attend all national and state conventions if he or she so wishes. The Union must send by registered or certified mail to the national office the names of the above-mentioned certified representatives.

B. The American Federation of Teachers Massachusetts. Delegates shall be elected by the membership according to Article VIII of this Constitution. The President (or representative) shall be a delegate.

C. The Massachusetts State Labor Council. The delegate or delegates to the Central Labor Body shall be elected by the membership according to Article VIII of this Constitution.

Section 2 All delegates shall make reports to the Executive Board on meetings attended.

Section 3 Every reasonable effort shall be made by this Union to pay legitimate expenses of delegates to meetings and conventions of affiliated organizations.

Section 4 The Union to the best of its ability shall be active in the affairs of affiliated organizations.

Section 5 Delegates to affiliated organizations shall meet the same requirements as those set for officers of this Local.

Section 6 If the President of the Local serves as an AFT / MA Vice-President, he or she shall be

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paid a yearly stipend of \$500. This stipend shall be paid by the Chelsea Teachers' Union, Local 1340.

ARTICLE VIII ELECTIONS

Section 1 The election of all Union officers shall be by secret ballot.

Section 2 During the final term of office, the voting for all Union officers shall be conducted prior to the start of the regular May membership meeting at each of the individual schools. The results shall be announced prior to the adjournment of the May membership meeting. Newly elected officers and Building Representatives will be installed on the first of July following the election but will be invited to the June meeting.

Section 3 In accordance with Section 4, Article IV, all vacancies must be filled by special election by the membership after compliance with election regulations of Section 4 below.

Section 4 The following election regulations shall be adhered to:

A. Nominations of candidates for office shall take place at a regular meeting at least one month before elections.

B. Written notice announcing the election of officers must be given to each member at least fifteen (15) calendar days prior to the election.

C. Written notice announcing the election of building representatives and delegates to state and national conventions shall be given to each member at least 15 calendar days prior to the election.

D. After nominations are officially closed for building representatives and delegates to state and national conventions at a regular Union meeting, and when the number of delegate nominations falls less than the number allotted to the Union, the Secretary of the Union shall make the motion that the members present accept the nominees as elected. There must be a second to the motion. If the motion carries, those nominees become the Union's building representatives and/or delegates. (If, however, the number of nominations exceeds the allotment, then there must be an election by secret ballot.)

E. The Executive Board members shall have the duty of conducting elections (unless their names appear on the ballot) and shall, at all times, consider the convenience of the membership.

ARTICLE IX DUTIES OF OFFICERS

Section 1 The President (or appointed delegate) shall:

A. preside at all meetings of the Union and of the Executive Board and shall be an

ex-officio member of all committees;

B. appoint all committees;

C. preside in the processing of all grievances at the Superintendent's level and beyond;

D. organize, select, and chair all negotiation teams for the CTU.

E. communicate with the AFT MA political action advisor;

F. advise membership of upcoming legislation that would impact current working conditions, retirement issues, and health insurance issues.

Section 2 The Vice-President shall:

A. perform all duties of the President in the absence of that officer and shall preside at committee meetings;

B. advise membership of upcoming legislation that would impact current working conditions, retirement issues and health benefit issues;

C. Report monthly to the CTU Executive Board.

Section 3 The ~~two~~ Paraprofessional Vice-Presidents shall:

A. communicate to the paraprofessionals all issues of concern;

B. maintain a frequent line of communication with the President;

C. represent the CTU Paraprofessional Unit on the Executive Board and enjoy all Executive Board privileges;

D. represent the Paraprofessional Unit at negotiations;

E. participate in grievance handling when the need arises.

Section 4 The Clerical Vice-President shall:

A. communicate with the clerical unit on all matters concerning their contractual rights and Union issues;

B. maintain a frequent line of communication with the Union President;

C. represent the CTU Clerical Unit on the Executive Board and enjoy all Executive Board privileges;

D. represent the Clerical Unit at negotiations;

E. be allowed to attend both Executive Board meetings and regular membership meetings without loss of pay;

F. participate in grievance handling when the need arises.

Section 6 The Treasurer shall:

- A. maintain a frequent line of communication with the Union President;
- B. receive, record, and deposit in the name of the Union all monies from dues and other sources;
- C. issue receipts and delinquent notices as needed;
- D. forward all per capita dues and current membership lists to the national office of the American Federation of Teachers;
- E. keep this Union in good standing at all times;
- F. take special care that per capita tax through June 30 is sent to the national office no later than fifteen days prior to the opening date of the National Convention to ensure that delegates from this Union Local be seated;
- G. keep accurate records and provide written report at Executive Board meetings;
- H. present an annual budget for Executive Board and Membership approval;
- I. pay on time all bills authorized by the approved budget and present to the Executive Board for authorization those items not authorized in the budget;
- J. attend meetings as requested by the President.

Section 7 The Secretary shall:

- A. maintain a frequent line of communication with the Union President;
- B. issue all notices;
- C. communicate information to the membership;
- D. keep the membership roll updated;
- E. provide members with access to communicating their preferences to their state legislators, regarding upcoming legislation to the membership;
- F. answer correspondence at the direction of the President;
- G. report outside correspondence to the President;
- H. be the custodian of the Seal, Charter, and the Constitution of the CTU;
- I. record and distribute minutes of the Executive Board and of the general membership meeting;
- J. attend meetings as requested by the President.

ARTICLE X BUILDING REPRESENTATIVES

The responsibilities of Building Representatives shall include:

- A. building and maintaining strong union support at their workplaces;
- B. communicating areas of concern in their workplace with the Union President;
- C. distributing all authorized Union communications to the members in a timely fashion;
- D. contacting the Union President with serious problems that require immediate attention;
- E. presiding in the processing of all grievances at the school level;
- F. presiding at the monthly School/Union Committee meeting at their school, voicing the concerns of the members; a written report (agenda and summary) submitted to the President;
- G. being knowledgeable of the Agreement articles and reference such frequently;
- H. serving as a co-chair with the president of a standing committee;
- I. being vigilant and alert at their workplace for new policies being implemented and how they affect the Agreement.

ARTICLE XI MEETINGS

Section 1 The time and place of regular Union meetings shall be fixed by the President prior to the school year and presented to the membership at the first scheduled meeting.

Section 2 There shall be a minimum of six meetings per school year.

Section 3 A quorum shall consist of twenty members.

Section 4 Special meetings may be called by the President, or requested in writing by twenty members.

ARTICLE XII FINANCE

Section 1 Dues shall be set at 1.5% of the base pay on the BA level.

Section 2 Additional finances may be raised by various creative activities.

Section 3 Effective September 1, 1984, and continuing thereafter, the CTU's annual membership dues shall increase at such times as the AFT National Per Capita, and/or AFT/MA State Federation Per Capita. and/or any other affiliation's Per Capita is increased.

ARTICLE XIII RULES OF ORDER

Robert's Rules of Order, Newly Revised, shall govern all cases not covered by this Constitution or the By-laws of this local.

ARTICLE XIV AMENDMENTS TO THE CONSTITUTION

The Constitution and the By-Laws thereof may be changed or amended at any regular meeting of the Local by a two-thirds vote of the members present, provided that the proposed amendment has been read to the members at the regular meeting immediately preceding, or provided that a copy of the proposed amendment has been presented to the membership at least two weeks before the vote on the amendment is taken.

ARTICLE XV AVAILABILITY OF THE CONSTITUTION

Section 1 Three copies of this Constitution and all future amendments shall be submitted to the national office of the American Federation of Teachers and to the state office of the American Federation of Teachers/Massachusetts.

Section 2 Copies shall be made available to other affiliated organizations upon request.

Section 3 Copies shall be available to any member of this Union upon request to the Secretary.

ARTICLE XVI AUTHORIZING ELECTRONIC MEETINGS

All Regular and Special Meetings of the Board of Directors, the Executive Committee, the Members, the Delegates, and all Committees may be held electronically and in accordance with the Electronic Meeting Policy adopted by the Board of Directors. Meetings may be held electronically at the discretion of the President, or by a majority vote of the Board of Directors, which shall include the affirmative vote of at least two officers. The President shall determine whether a meeting will be totally electronic, totally in-person, or a hybrid of the two. The Electronic Meeting Service, which shall be designated by the President, shall provide the technology and options to maintain the integrity of the deliberative and voting process, and shall comply with the criteria established in the Electronic Meeting Policy. Any rules contained in the Electronic Meeting Policy shall supersede any conflicting standing or special rules of order.